

The Claremont City Council held a meeting on Wednesday, January 25, 2017, in the Council Chambers of City Hall.

The meeting was called to order by Mayor Lovett at 6:30 p.m.

Members of the Council present were:

Ward I Councilor Carolyn Towle
Ward II Councilor Scott Pope
At-Large Councilor Keith Raymond
Assistant Mayor Victor Bergeron
Mayor Charlene Lovett
At-Large Councilor Allen Damren
At-Large Councilor Bruce Temple
Ward III Councilor Nicholas Koloski
At-Large Councilor John Simonds

Also present were:

Patrick MacQueen, Acting City Manager
Jane Taylor, City Solicitor

AGENDA CHANGES

Mayor Lovett said Mr. MacQueen will do his City Manager's Report after Mayor's Notes.

MAYOR'S NOTES

Mayor Lovett presented Police Chief Alex Scott with a commendation in honor of his service with the City of Claremont. He will retire from the City on February 3, 2017.

Chief Scott said he appreciated the acknowledgement, but the men and women of the Police Department did the work and deserve the appreciation, as well as his wife and children for their support.

John Simonds, in his capacity as Sheriff, presented Chief Scott with a Certificate of Appreciation from the NH Division of Film & Digital Media.

Mr. Koloski gave Chief Scott two videos of films that were made in Claremont.

Mayor Lovett presented a proclamation for Winter Fest Month (February) to Chuck Allen, representing Arrowhead Recreation Club. Mayor Lovett thanked Mr. Allen for all the activities at Arrowhead.

Mayor Lovett said that she and School Superintendent Dr. Middleton McGoodwin went to Concord to testify on HB 525 regarding stabilization grants for education. She said she also

testified on SB 57 regarding funding eligible drinking water and wastewater projects under the state aid grant program.

City Manager's Report

Mr. MacQueen reviewed his report: Current Use questions; City Assessor Marlene Jordan sworn in; SAFER Grant update; CIP requested documentation; Inventor of City leases; City Hall boiler problems; JSL update; Consumer Water Report; Leak detector grant approved; Snow budget- 50% of snow budget has been used to this point; Northeast Resource Recovery Association Recycling impact; Comcast notice; Ryan McNutt visits; Legislative matters-HB 525 Education Stabilization Grants, SB 57 State Aid Grant (SAG) Funding, and HB 324 on DRA Assessment of Utility Properties.

Mayor Lovett said this is Mr. MacQueen's last Council meeting and she thanked him for all the work he has done as Acting City Manager.

Ms. Towle said at last night's joint Council/School Board meeting Dr. McGoodwin complimented Parks and Recreation Director Mark Brislin regarding his working together with the schools.

CITIZEN'S FORUM

No one spoke.

OLD BUSINESS

Ordinance 552 Elderly Exemptions – Second Reading – Public Hearing

The purpose of this proposed change is to increase the income limit for an unmarried elderly taxpayer to \$22,000.00 and the combined income limit for married elderly taxpayers to \$29,000.00. The net asset limit has been increased to \$60,000.00.

Enactment of this ordinance will increase the income and asset limits for single and married elderly taxpayers.

A motion was made by Mr. Damren and seconded by Mr. Pope to adopt Ordinance 552 Elderly Exemptions.

Mr. Damren read the explanation of proposed action into the record.

Mayor Lovett said she had received comment(s) that the income level was not high enough and should be \$25,000 for single, but they didn't think it was necessary to increase the asset limit. Another constituent said her 2002-2016 tax bill gone up 61%, an increase of \$2,368.78. Mayor Lovett said she checked another property and the taxes went up 67%, an increase of \$1,259.25.

Mr. Koloski said he appreciated the feedback, but the Council needs to start somewhere.

Ms. Towle asked how many will be affected by this amount. Marlene Jordan, Assessor, said at the \$22,000 limit, you might get another half dozen people and at \$25,000 there may be a dozen.

Mr. Pope said he would like to see \$1,000 added to the single and the married limits. He thinks it needs to be done right, as it will probably be another 10 years before it is reviewed.

Mr. Damren agreed with Mr. Koloski. Whatever is done here gets shifted to others. He thinks these numbers are a good place to start.

Mayor Lovett opened the public hearing. No one spoke. She closed it.

Roll call vote: motion carried 9-0.

NEW BUSINESS

Alcohol at Arrowhead Discussion

Mayor Lovett said that Chuck Allen, Arrowhead Recreation Club, had requested the language regarding consumption of alcohol in City parks be broadened.

Police Chief Alex Scott talked about a program from Gloucester, Massachusetts on how to address alcohol use/abuse in that community. The first thing they did was to eliminate alcohol use in city parks. In the mid-90s Claremont prohibited consumption of alcohol in all of its parks. A few years ago, over his objection, Arrowhead requested to serve beer and wine inside the Lodge. Council amended the ordinance to allow the use. There has been no issue to date, but anytime you have alcohol service, there could be an issue. He thinks it is a mistake to expand the use. The City has a policy statement set forth in its Code that it is the responsibility of Claremont to protect and promote the public health, welfare and safety of the community and its citizens. He doesn't see how the expansion of alcohol service in our City parks coincides with that responsibility. Allowing hard liquor sends the wrong message to the users of those facilities. He said there have been no issues with alcohol yet, so he thinks the City needs to keep it that way.

Chuck Allen, Arrowhead Recreation Club member and Ward 3 resident, said that people have declined to rent the Arrowhead facility due to lack of alcohol service. He suggested that a request for each function could go before the Licensing Board for approval, or in the yearly license, make it so functions requesting hard liquor service would have to go before the Licensing Board. He asked about having separate ordinances for Arrowhead and all other City facilities. He said they want to have alcohol service in a controlled facility such as a tent, outside the Lodge. Currently, when alcohol is served inside, the food has to be served outside. He suggested putting alcohol in a secure (double-fenced area). He said the ordinance has two definitions for alcohol and suggested that be reviewed.

Mark Brislin, Parks and Recreation Director, said he agreed with Chief Scott's presentation. Parks and Recreation's goal is to promote healthy living. If people want hard liquor, there are other places in the community that serve it.

Jim Feleen, Ward 2, talked about the general management issue of the JSL (Junior Sports League) and Arrowhead. He said both facilities are/were managed and operated by volunteer citizen groups with little, or no, City management or financial oversight. He said Arrowhead Recreation Club has done tremendous work, however, the City needs to look at how Arrowhead is being managed. He said Mr. Brislin should have a more hands-on ability to manage that park. Regarding alcohol service, he agreed with Chief Scott and Mr. Brislin. Alcohol/substance abuse is a major problem in this county. He doesn't think children should be under the impression that fun can't be had without the use of alcohol. He said this is not the place for alcohol.

Mr. Allen said that alcohol service is done by an off-premise caterer. They have insurance and do ID checks. This is currently confined to the lodge and he would like it to be allowed in other areas as well. It would be in a confined area and it would be well controlled.

Mayor Lovett would like to refer this issue to the Policy Committee.

Mr. Temple would like the Policy Committee to review this for all parks.

Mr. Koloski said he was okay with having the Policy Committee review this. He pointed out that because his restaurant serves alcohol other than beer and wine, he has to carry assault and battery insurance. Ms. Taylor said that the caterers are required to carry liquor liability insurance, but she didn't know if they carried assault and battery insurance. She said the Arrowhead insurance policy looks as if they have liquor liability exclusion in one part and the other part has an exclusion of the exclusion. She said even if the caterer has liquor liability, people will also look to the City for liability.

Mr. Koloski asked about the operating agreement between Arrowhead and the City and if the City can be held harmless. Ms. Taylor said no. Mr. Koloski said he has no objection to having a beer tent in an outlying area.

Mayor Lovett said the Policy Committee will look at this as a whole. She agreed with Mr. Allen that alcohol was defined in two different ways. Ms. Taylor said they are inclusive and are not in conflict.

It was the consensus of the Council to send this to the Policy Committee.

Mr. Pope said he is on the Policy Committee and this will be brought back to the Council for discussion.

Mr. Bergeron wanted it known that this won't be done overnight.

Mr. Koloski asked about assault and battery coverage for Parks and Recreation volunteers. Ms. Taylor said that all volunteers are required to sign a liability release. She said the City has the liability, but it has a good defense.

Mr. Pope invited Mr. Koloski to be a part of the discussions.

Water and Sewer Enterprise Fund Balance Levels Discussion

Mary Walter, Finance Director, said that she and Mr. MacQueen met with Public Works Director Scott Sweet and came up with these recommendations. The City needs to set aside money for future replacement of the water and sewer plants. There is substantial money in the sewer reserve, but not in the water reserve. The recommendation is to have three capital reserves for each (water and sewer): Emergency Plant Replacement Reserve to fund unanticipated emergency repairs of the utility infrastructure (i.e. water main breaks, pump failures) and shall not exceed 2% of the book value of the existing utility infrastructure; Stabilization and Contingency Reserve to make up for revenue shortfalls due to variations in utility usage with a target level of 25% of the annual operating budget of the utility; and System Replacement Reserve to provide for the replacement of aging and failing infrastructure-water should have in reserves the amount on the books for depreciation, currently \$9 million and sewer \$15 million. The recommendation is to put aside 5% annually until 100% of the annual depreciation expense is funded.

Council agreed to put this on the 2/8 Council agenda and add a non-meeting for bargaining.

Mayor Lovett asked about receiving sludge from other wastewater facilities and whether the City receives enough revenue to offset the wear and tear on the facility.

Mr. Sweet said there is minimal impact on our equipment and the City made \$50,000 last year. That money goes to the Sewer Enterprise Fund.

Mayor Lovett asked about Utility Partners making recommendations to the Capital Improvements Plan (CIP). Mr. Sweet said yes. It is separate from the City CIP.

Mr. Koloski asked about making sure Utility Partners is doing the required maintenance. Mr. Sweet said they give the City a report every month and the City sees the invoices. He said Wright Pierce, an engineering firm, is working on an asset management plan for the City.

Mr. Temple asked about Utility Partners' contract that runs out in June. Mr. Sweet said he will discuss with the new City Manager whether to extend the contract for 1 year or to send out an RFP.

Mr. Pope talked about private/public partnership advantages and disadvantages and suggested a review. Mr. Sweet said that will be done this spring before going out for a new contract.

Unitarian Church/Conference Center Discussion

Ms. Taylor gave a history of the facility. She said there is a covenant regarding the bell and the covenant can only be removed by the Albees (former owners). Any covenants put on the property by the City can be removed by the City; it's up to the Council to decide. She suggested bring this forward next month for a full discussion.

Mayor Lovett is concerned that the building is decaying. It has a lot of historical value. If the covenants are removed, it could be used for a variety of things.

Ms. Taylor said it is in the Historic District and Council can decide to put additional new conditions on it.

Mayor Lovett asked for options of what can be done at the next meeting. Ms. Taylor said she can also do a resolution to remove the covenants.

There was a brief discussion about the bell and it was requested that the City administration, as well as Councilors, bring back ideas to the next meeting of how it can be preserved and where to put it on display.

Mr. Pope asked if there were any hidden “timebombs” such as asbestos or electrical issues. Ms. Taylor said details of the present condition of the property is unknown.

There was discussion of using the building to expand the Library, but it was agreed that now is not the time to do it.

Sidewalk Snow Removal by Abutting Landowners Discussion

Mayor Lovett said this is on the agenda because City staff continue to get complaints about maintenance of sidewalks. People made a suggestion to put an ordinance in place so that property owners would be responsible for the abutting sidewalk.

Ms. Taylor said New Hampshire requires that public sidewalks be maintained by the municipality. Even if the City wants the property owner to maintain the sidewalk, the City would still retain the liability. She said you would also need to think about enforcement.

Mr. Temple asked if Public Works is plowing all of the sidewalks. Mr. Sweet said they are plowing 24 miles of sidewalks, but not some smaller side streets because the sidewalks are too narrow for the sidewalk plow to fit on.

Ms. Taylor said if it is a public sidewalk, then the City is responsible for clearing them. If there are certain sidewalks that can’t be done by machine, then we need to put it in a policy that they will be done when time permits.

Mr. Sweet said there are not enough people to do both streets and sidewalks at the same time. The protocol is to do the main roads first, around the schools, and then the side streets. Once the roads are done, then they do the sidewalks, which is sometimes the day after the storm.

Ms. Taylor said a couple of years ago she worked with Primex and Public Works to have a snow and ice policy put in place. She suggested Council may want to look at whether or not Claremont needs all the sidewalks it has.

Mr. Sweet said the Snow Removal & Ice Control Policy is on their webpage.

Ms. Towle said she is not in favor of doing away with any of the sidewalks.

Mr. Damren thinks the Public Works personnel have done a good job this winter.

Mayor Lovett asked if it would be possible to put notifications in the “e-blast” about what Public Works is doing with the sidewalks and why they are doing it.

FUTURE AGENDA ITEMS AND DIRECTIVES

Mayor Lovett said February 8th is the date of the deliberative session for the School Board. She asked Councilors when they want to meet because Council will not meet that night. It was the consensus of the Council to move the meeting to February 9th. She said to add another item to the agenda; she needs to update the Council on where we are in the negotiations for various contracts. This will be a half hour non-meeting prior to the Council meeting.

There was a discussion about whether this should be a non-meeting or a non-public meeting with Mr. Temple expressing his preference that it be a non-public meeting.

It was the consensus of the Council to have a non-meeting at 6 p.m. on February 9th.

Mr. Pope said some people have suggested to potentially name the bridge by the Visitors Center in honor of retired City Manager Guy Santagate. Mr. Pope asked to put this on the second meeting of February.

CONSULTATION WITH LEGAL COUNSEL

ADJOURNMENT

At 8:42 p.m., a motion was made by Ms. Towle and seconded by Mr. Damren to adjourn.

Voice vote: motion carried 9-0.

Respectfully Submitted,

Dorée M. Russell
Clerk to the Council